INTERVIEW

"GO AFTER THE BIG FISH RATHER THAN CONSUMERS"

In a candid conversation, Narcotics Control Bureau (NCB) director general **Satya Narayan Pradhan** tells Group Editorial Director **Raj Chengappa** about his agency's decision to not press charges against Aryan Khan, and the need to reform the system. Excerpts:



CHANDRADEEP KUMAR

Q. After such a high-profile arrest, why did NCB drop charges against Aryan Khan and five others?
Essentially, there must be direct criminal liability, we cannot construct liabilities without physical and corroborative evidence. Already, the courts have been very strong on the rebound in cases where liability is constructed out of thin air and some speculative aspect creeps into the investigation. We didn't want any speculative aspect, we wanted every evidence, every accusation, to be anchored in evidence, solid evidence. We extended it to the principle underlined by the Supreme Court, of evidence being beyond reasonable doubt. Those six, including Aryan Khan, could not have been charge-sheeted as there was not a shred of evidence beyond reasonable doubt to indict them. Nor was there any possibility to anchor it to any physical or corroborative evidence.

Q. What finally convinced you to take this action?
It was a combination of professionalism and legal principles, not an emotional decision. If NCB does not set standards and the threshold for how to take care of victims, no one will. I was clear that even if we have to take flak for the NCB's decision, it would be worth it, because at least we would be on the straight and narrow path of legal principles.

Q. Has the NCB's reputation taken a beating because of this episode?
If you must bring back a modicum of professionalism into an organisation, it is imperative to do a course correction. Had it not been for the names involved, the Mumbai case would have been an ordinary one. We are not here to go after small cases. We should not go around catching paan-wala peddlers. Our job is to catch the big fish such as cartels that operate pan-India, or even international cartels. So, I have issued orders that the NCB should avoid petty cases and focus only on the big cartels and peddlers.

Q. Do we need to revisit the NDPS Act, which treats consumers as criminals rather than addicts who need medical help?
There is serious thinking at the highest level about reforming the NDPS Act. As of now, all I can share is that there is a broad consensus that something should be done to decriminalise consumption. But the consensus is a little nuanced, so there are different opinions on how to go about it. That